



**Naim Automation
Systems**
CO . K E N Y A

LEGAL DOCUMENT
CONTRACT

PROFESSIONAL SERVICES CONTRACT

Service *Agreement*

The terms of engagement between Naim Automation Systems Co. and the Client for the design, build, deployment and care of automation systems.

AGREEMENT NO.

NAS-SA-2026-_____

CLIENT / AGENCY

DATE

Provider

Naim Automation Systems Co.

Represented by M.A. Salmin

Private & Confidential



1. Parties & Definitions

This Service Agreement ("Agreement") is entered into between **Naim Automation Systems Co.** ("the Provider"), represented by **M.A. Salmin**, and the Client named on the cover page ("the Client"). "System" means the automation system(s) described in the accepted Quotation, which forms part of this Agreement.

2. Scope of Services

The Provider shall design, build, test and deploy the System as itemised in the accepted Quotation. Work outside the itemised scope ("Change Requests") shall be quoted separately in writing before commencement. Nothing in this Agreement obliges the Provider to perform services not expressly stated.

3. Fees & Payment Terms

- ✦ **Setup Fee:** 50% deposit due upon signing; 50% balance due upon completion and live demonstration, before final handover.
- ✦ **Monthly Service Package:** due from the month following final delivery; covers hosting, upkeep, monitoring and basic support.
- ✦ **Late payment:** service may be suspended where any amount remains unpaid 14 days after its due date, upon written notice.
- ✦ All fees are quoted in KES unless stated otherwise; USD equivalents available for international clients.

4. Refund Policy

Components covering consultation, systems architecture and development are **non-refundable once the project begins**, as these costs are incurred immediately. Where the Provider fails to deliver the agreed System and the failure is not remedied within 21 days of written notice, the Client is entitled to a refund of amounts paid for undelivered components.

5. Delivery, Acceptance & Training

Delivery timelines (7–21 business days by scope) commence upon receipt of the deposit and all required client materials. Acceptance occurs upon live demonstration of the System performing the agreed functions. The Provider shall train the Client's team and supply handover documentation. A 30-day post-delivery adjustment window is included for refinements within the agreed scope.



6. Client Obligations

The Client shall provide timely access to necessary accounts, information and personnel; ensure the accuracy of data supplied; and appoint a contact person authorised to give approvals. Delays caused by the Client extend delivery timelines accordingly.

7. Data Protection & Confidentiality

Each party shall keep the other's confidential information strictly confidential. The Provider shall process personal data (including candidate data) only for the purpose of delivering the System, in line with the **Kenya Data Protection Act, 2019**. The Provider shall implement reasonable technical measures to protect such data and shall not sell or disclose it to third parties.

8. Intellectual Property

Upon full payment, the Client receives a perpetual licence to use the System for its business operations. Underlying frameworks, tooling, know-how and reusable components remain the intellectual property of the Provider. The Provider may reference the project and non-confidential outcomes in its portfolio unless the Client opts out in writing.

9. Service Levels & Support

Under the Monthly Service Package, the Provider shall monitor the System, apply necessary upkeep, and respond to support requests within one business day. Emergency outages are prioritised. Support excludes new features, which are handled as Change Requests.

10. Limitation of Liability

The Provider's total liability under this Agreement shall not exceed the total fees paid by the Client in the six (6) months preceding the claim. Neither party is liable for indirect or consequential losses. Nothing limits liability that cannot be limited by law.

11. Term, Suspension & Termination

The Monthly Service Package continues month-to-month and may be cancelled by either party on 30 days' written notice. Upon termination, the Provider shall hand over Client data in a standard format. Hosting-dependent functions cease when hosting ends.



12. Dispute Resolution & Governing Law

The parties shall first attempt to resolve any dispute amicably within 21 days. Unresolved disputes shall be referred to mediation before litigation. This Agreement is governed by the laws of the Republic of Kenya.

13. Entire Agreement

This Agreement, together with the accepted Quotation and any signed annexes, constitutes the entire agreement between the parties and supersedes all prior discussions. Amendments are valid only in writing signed by both parties.

Execution

Signed by the duly authorised representatives of the parties on the date(s) below.

FOR THE CLIENT

Name: _____

TITLE: _____ DATE: _____

FOR THE PROVIDER

M.A. Salmin — Founder & Systems Architect

NAIM AUTOMATION SYSTEMS CO. DATE:

This document is a professional services template and does not constitute legal advice. Parties are encouraged to seek independent legal review before execution.